Standard Operating Procedure (SOP)

Country Specific Requirements China

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Applicability

Bayer Level:	CH, PH

This document is electronically approved (signatures on the last page)

Distribution Sheet for Quality Regulations

Division/Business Unit ☒ PH ☒ CH

GBS Location
☐ Global Business Services Barcelona
☐ Global Business Services Costa Rica/Brazil
☐ Global Business Services Manila
☐ Global Business Services Gdansk
☐ Global Business Services India
☒ Global Business Services Dalian
☐ Global Business Services Germany

Region/ Country
☐ Global
☒ Specific Country: China

Relevance for R&D QMS
☐ Affected
☐ Interface
☒ N/A

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Relevant Process and Activities:	PTC

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1 Scope and Framework

1.1 Scope

Bayer Country Quality Units are accountable for a GMP compliant Product Technical Complaint Management within their respective countries. Within this responsibility they are supported by the respective Global Business Service in process steps like complaint initiation, forwarding for investigation to the RQU, and final verification including complaint sample management and reimbursement process.

This SOP defines clear guidance to the Global Business Service regarding all country specific requirements.

1.2 Framework

This SOP is based on principles and requirements outlined in SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in SSCDN”.

2 Abbreviations

AE	Adverse Event
CQH	Country Quality Head
CQU	Country Quality Unit
OTC products	Over-the-counter products
PTC	Product Technical Complaint
PV	Pharmacovigilance
PVCH	Pharmacovigilance Country Head
RQU	Responsible Quality Unit
GBS	Global Business Services
GBS DLC	Global Business Services Dalian Center
CCC	Customer Contact Center
RAD	Radiology
SCM	Supply Chain Management
CMO	Contract Manufacturing Organization

3 Purpose & Set-Up

3.1 Purpose

Country Specific Requirements for China are described in this SOP, regarding e.g. Data Privacy, Sample Handling Process, Reimbursement Process, Contacts, escalation rules.

During the processing of all PTCs by Bayer owned Global Business Services all country specific requirements are considered and followed besides the general complaint handling described in the SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”.

3.2 General guidance

The employees of the Global Business Services are following the SOP during complaint processing in complaint database on behalf of the Country Quality Units.

3.3 Roles and responsibilities

PTC BS team

- manages PTCs and suspected falsification and counterfeit on behalf of the CQUs of the legal entity which introduces product into the market (e.g. Marketing Authorization Holder, Distribution license holder)
- Enters PTCs, suspected falsification and counterfeit and Usability Issues according to defined timelines, into the global complaint database in English language
- forwards all non-PTC cases to the CQU or applicable function for further processing
- performs the initial intake of complaint s after receipt and considering the information provided by the PV in case of an AE and/or a medical device (incl. Medical Device constituent of combination product) is involved
- informs the respective PV about all PTCs with a potential associated AE or LODE or potentially reportable medical device complaint s, including the unique complaint database number and all relevant follow-up information (e.g. Batch number)
- informs the CQU about PTCs where local authorities are involved, about all potential falsification and counterfeits and any other cases described in the Country Specific SOPs
- checks completeness and accuracy of information (including the photo or video, if available from the complainant) before forwarding the cases to the RQU
- Initiates first contacts with the complainant within first 5 days of receipt of the complaint information to obtain follow-up information (e.g. batch number, event details, etc.) and complaint sample, as needed, documenting these efforts including the number of attempts requesting sample.
- ensures translation of non-hosted languages
- forwards all cases to the respective RQU for further investigation and final assessment
- checks if a complaint sample is available and starts the process to retrieve the sample, documenting these efforts including the number of attempts requesting sample in detail in complaint database
- reviews the case for completeness and comprehensiveness and closes the assessed complaint in complaint database
- support the process for reimbursement management
- responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in cooperation with the CQU
- notifies the legal manufacturer of a device and where necessary, the manufacturer's authorized representative and the importer, if applicable. in case of any discussion or doubts contacts the CQH as the first line support

Country Quality Head (CQH) / Country Quality Unit (CQU)	- ensures the appropriate handling of PTCs, and suspected falsified and counterfeit incidents, reported in the respective country including the timely execution of the related activities, particularly for the entry of the cases into complaint database, forwarding them and for responding to the complainant - responds to the complainant, for PTC+AEs in liaison with the PVCH and documents the response in the global complaint database or other cross-referenced system in corporation with the Global Business Services - fulfills all obligations, e.g. PTC related reporting requirements defined by legislations or regulations - oversees and monitors the whole PTC process for products on market of their legal entity in case of delegation to GBS by controlling appropriate Key Performance Indicators according to GSOP 1372 “Perform Country Quality Management Review”.

4 Specific requirements regarding PTC handling

4.1 Country Specific Requirements listed by different topics

Description	Assigned Roles & Document Reference
4.1.1 General Information GBS DLC located in city Dalian China, which is on behalf of Bayer (China) Limited to perform administrative part of PTC and Suspected Falsification and Counterfeit Incident handling following roles and responsibilities. CQU China located in city Beijing China, which is on behalf of Bayer Healthcare Company Limited.	
4.1.2 Contact list General email address of CQU: *ptc.cn@bayer.com* The list will be updated by GBS and CQU if any changes awareness within 3 working days. On every January, GBS sends list to CQU for yearly review and updates list in share point accordingly. **Remark:** Current name and e-mail address of CQH and CQH deputy are found on the QINT SharePoint: *Country Quality List*	GBS
4.1.3 Escalation Rules The CQUs should be notified via e-mail (generic CQU address) about any complaint case referring to at least one of the following situations: - All cases with potential risk classification High or Medium - Suspected Falsification and Counterfeit Incident - Any PTC cases involving Authorities - Any cases have already been alleged to report to Media or Authority. - Reimbursement claim beyond the principle of compensation - Events from key customers (hospital and distributor) that is alleged to affect the business, such as stopping using Bayer products - Confirmed cases or confirmed falsification and counterfeit incidents with final risk classification Medium or High	GBS
4.1.4 Pharmacovigilance cases If a complaint case is related to any type of Adverse Event, the Pharmacovigilance department has to be informed via the e-mail address: AE_China@bayer.com. If Pharmacovigilance department receives information in same email loop, GBS PTC team does not need to inform again. For Radiology Device, if a complaint case is related to any reportable Adverse Event, the CQU has to be informed via the following e-mail address: *ptc.cn@bayer.com*.	GBS

Description	Assigned Roles & Document Reference

When Bayer is not the MAH of the product, Adverse Event is handled by the corresponding MAH. If PTC+AE receives for products, Bayer to inform corresponding MAH to handle Adverse Event.

4.1.5 Product Samples GBS

If a sample is declared to be available by the complainant or RQU request sample for investigation, GBS should request and organize the sample transfer to local RQU (for products produced by local sites)/CQU (for imported finished product) or return by reverse supply chain.

- If samples are shipped to the local RQU (for products produced by local sites)/CQU (for imported finished product) via courier services (exception: Biotech, Oncology, Injections and Guangzhou site products). GBS informs RQU/CQU contact person via email that a particular sample transfer is to be expected. In the same email the complainant is requested to send product and reply for tracking number. For suspected counterfeit checking, sample only can be shipped to RQU/CQU via courier services.

  Samples shipment of Biotech, Oncology, Injection products and Guangzhou site products are done via reverse supply chain. GBS sends sample return assistance request by email to the commercial, SCM and relevant local RQU (for products produced by local sites)/CQU (for imported finished product) colleague for sample return.

  The RAD Devices sample shipment is done by reverse supply chain only.

  For RAD Device disposables, GBS sends return request email to Bayer channel colleagues, in the same email the 3rd party logistic warehouse/CQU should be informed. In the email, GBS provides warehouse/CQU address and products information which need to be printed out and adhered to post box outside by complaint sample sender.

  For RAD Devices, further shipment of complaint sample to oversea RQU is arranged per RQU email sample request. GBS sends email to inform SCM, 3rd Party Logistic Warehouse, CQU to arrange sample transfer by courier if necessary. In additionally, if sample is disposable products, GBS needs to provide CN-MDGSP-FM-BJ-05-014 (Material Sampling Record, Annex 10) which filled by GBS as attachment in the email.

For imported finished products, further shipment of complaint sample to oversea RQU is required in general and handled by CQU. GBS inform RQU by email once the courier tracking information is available, then add the tracking information into complaint database if attachable.

Relevant partners contact list refers to “List of products and contact for PTC handling”.

4.1.6 Statement letter GBS

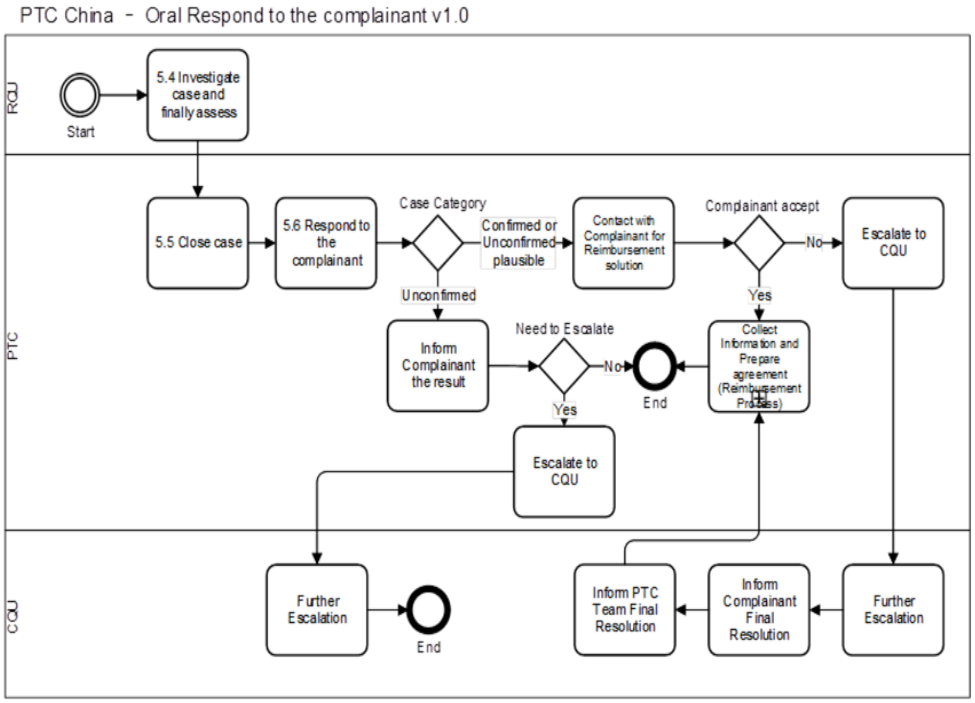
Acknowledgement Letter when a complaint comes in:

NA

Description	Assigned Roles & Document Reference

Response Letter after closing:

For email reply response, GBS uses annex 7 as template. For verbal reply, GBS reads annex 7 template to provide investigation results. Verbal reply is the first choice for consumer reply. GBS documents verbal response attempt in Complaint database. If complainant asks quality related questions which is beyond GBS verbal response scrips or complainant requests further escalation to other quality departments, GBS escalates to CQU for further action.



Generally, response letter with stamp is to be prepared for complaint from Authority or hospital by request. All letters must be in local language and need to be agreed by relevant partners (such as PV, Legal, Communication, etc.) as necessary. The response does not consist of copies of the complaint database. GBS prepares draft version based on RQU investigation results and using the templet provided by CQU (Annex 1 PH/CH products for Health Authority, Annex 2 PH/CH products for Hospital, Annex 3 RAD device for AE Monitoring System, Annex 4 RAD device for Hospital), then sends to CQU/RQU for review and following actions. For RAD complaint s, response letter is generally required for cases with risk classification High or Medium, risk classification High or Medium, from China National Medical Device Adverse Event Monitoring Information System (AE Monitoring System) or response letter requirement is clearly mentioned in complaint email body.

/	Preparation	HA Submission	Hospital Response
Local Site	GBS/RQU/CQU	Authority contact person	Bayer reporter
Oversea Site	GBS/CQU	Authority contact person	Bayer reporter

Description	Assigned Roles & Document Reference
4.1.7 RQU Contact list A table with all available products in the country and the respective RQU contact names needed for the entry into complaint database is available and refers to “List of products and contact for PTC handling”.	GBS
4.1.8 List of Local Opportunities Products GBS could find local opportunities products from “List of prouct and contact for PTC handling”. GBS processes local opportunities products PTC in complaint database.	
4.1.9 Data Privacy Requirements NA	
4.1.10 Gathering additional information (including obtaining translation) Translation is not required for China cases, since Chinese language is a hosted language in GBS Dalian. That means GBS needs to contact with complainant (verbal and written) to gather missing information regarding the complaint. If necessary, PTC reporting form (annex 8) can be used to facilitate complaint information collection. If individual consumer suspects product in its identity and insists checking with sample, GBS need to collect and check consumer’s identity via ID card information, drug purchase evidence. GBS never gives medical information. In case there are more information need by customer, GBS provides call Center number 4008100360 or forward email to CQU for further information query. communication template script for Elevit discoloration is as annex 9.	GBS & CQU
4.1.11 Reimbursement and Replacement Generally, PTC with confirmed (or unconfirmed but plausible) product defect, a replacement/reimbursement can be granted to consumer based on principle. The premise is that the sample needs to be returned for investigation. **Replacement** Replacement principle: Generally, replacement quantity principle is 1:1. The replacement could be done for 1) further investigation only can be done after receiving sample, 2) the quality issue could be confirmed or already known by GBS, 3) strongly requested by complainant to avoid drug taking interruption. But no replacement should be given for suspected falsification and counterfeit checking and products from Guangzhou site. - If samples are shipped to the RQU (for products produced by local sites)/CQU (for imported finished product) via courier services, GBS informs local RQU/CQU to initiate sample replacement after receiving samples. - If sample ship through reverse supply chain, GBS should send return request by email to the commercial, SCM and relevant RQU/CQU colleague for sample return and asks commercial colleagues to help with sample replacement arrangement. After receiving	GBS

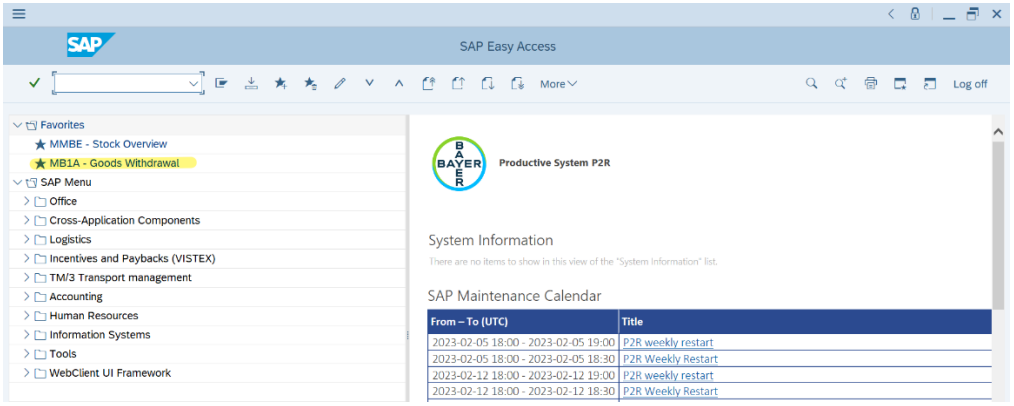
Description	Assigned Roles & Document Reference

commercial colleagues' confirmation, GBS inform complainants to send sample back to where they received products.

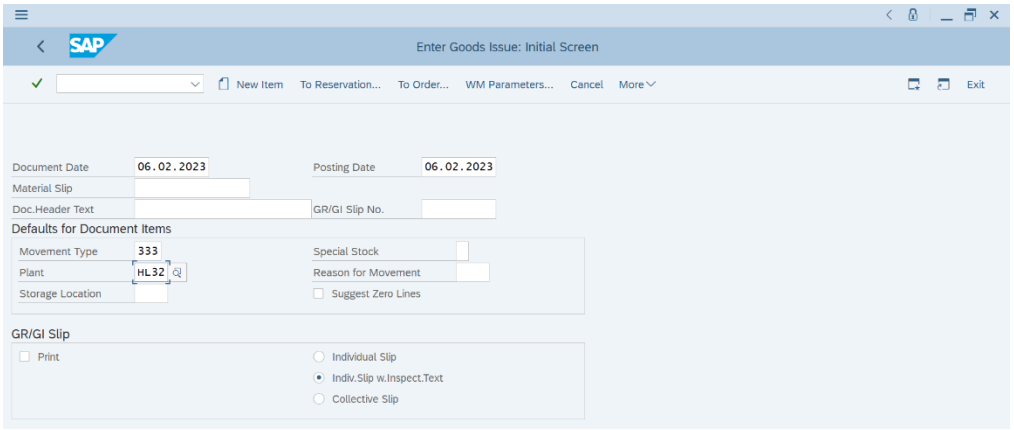
- For RAD products, after receiving replacement request from commercial colleagues and confirmation from 3rd party warehouse for sample receipt, GBS fills CN-MDGSP-FM-BJ-08-004(Replenishment Application Form, Annex 14) and sends to CQU colleagues, CQU forwards approval to SCM for further actions accordingly.

- For product Elevit from Qidong site, GBS firstly checks with warehouse for current batch number of required products in stock and then initiates sample application operation in SAP system (MB1A) after receiving confirmation of sample receipt. GBS also needs to prepare CN-CQ-FS-4.9-12 (Sample Application Form, Annex 12), Q/PF-13-25(Goods Statement of Profit and Loss, Annex 11) in word documents and sends to CQU, CQU will send back scanned form with signature and stamp. Then GBS forward CQU email with complainant information and required production information to warehouse for further distribution. SAP entering steps are as below:

1) double click Goods withdraw

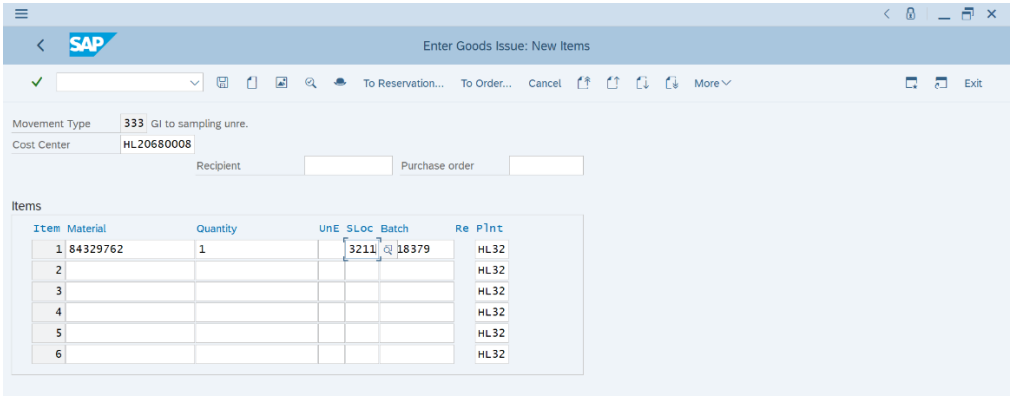


2) enter "movement type" and "plant", then press "Enter"



Description	Assigned Roles & Document Reference

3) enter material number, batch number and quantity



Reimbursement

Bayer Pharma/Radiology device reimbursement is handled by PH/RAD division, Bayer Consumer Care products reimbursement is handled by CH division.

Reimbursement principle:

1） If RQU final assessment is confirmed quality defect and no harm for health: less than 1:10 products given requirement or less than 1000-yuan cash given requirement are acceptable. GBS could negotiate with complainant and make the decision during acceptable scope

2） If RQU final assessment is unconfirmed quality defect - but plausible: less than 1:3 products given requirement or less than 500-yuan cash given requirement are acceptable. GBS could negotiate with complainant and make the decision during acceptable scope

3） If RQU final assessment is confirmed quality defect and already did harm (death or serious injury) for health: legal process is to be started.

4） If RQU final assessment is no quality defect: no reimbursement given.

Information are required from complainant for reimbursement: strength and quantity of sample, purchase certificate, copy of ID card, bank card with signature, bank of deposit, settlement agreement with signature (last three items are mandatory for cash).

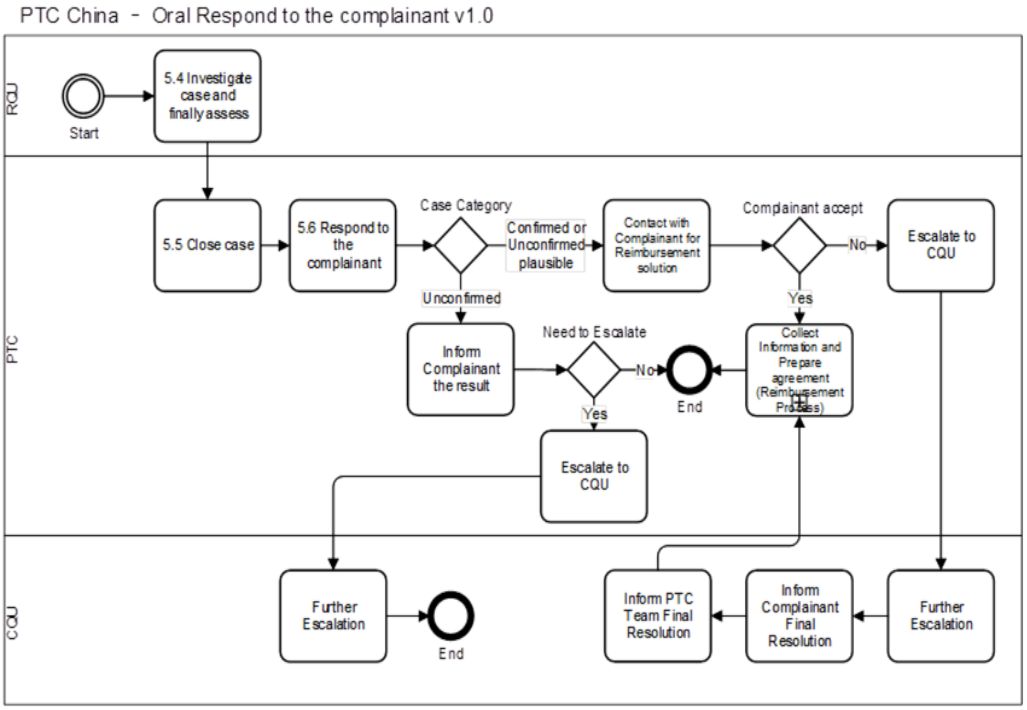
GBS initiates reimbursement after negotiation with consumer for case within the local principle scope. GBS passes the results to local RQU (for products produced by local sites)/CQU (for imported finished product) for further processing.

GBS prepares reimbursement agreement and coordinates with consumer for signature and asks consumer to post original agreement to related local RQU/CQU for further steps of reimbursement. If reimbursement is done via money, reimbursement agreement is needed for all cases. If reimbursement is done via products given, reimbursement agreement is needed for 1) health authority or social media involvement (including threaten to be involved), 2) reimbursement out of principle, 3) requested by RQU. If case involves authority, GBS prepares reimbursement agreement with both sides signature needed version. For others, GBS prepares reimbursement agreement with complainant

Description	Assigned Roles & Document Reference

signature needed only version. Reimbursement agreement should be prepared by template provided by CQU and legal department (Annex 5, Annex 6). For RAD device products, GBS fills CN-MDGSP-FM-BJ-05-014 (Material Sampling Record, Annex 10) and sends along with CN-MDGSP-FM-BJ-08-004(Replenishment Application Form Annex 14) to CQU colleagues, CQU forwards approval to SCM for further actions accordingly.

If reimbursement claim beyond the principle of compensation, GBS escalates to CQU and CQU contacts with different departments for final decision. Then CQU informs complainant the final decision. If complainant accepts final decision, CQU informs GBS to perform following information collection and preparing reimbursement agreement.



4.1.12 Mandatory Spot Checks for Translations

GBS

NA

4.1.13 Exceptions and special cases

For Elevit tablet discoloration complaint, GBS asks photo firstly. If RQU request sample, then GBS arranges sample back based on RQU request.

If GBS receive customer complaint regarding discoloured (spot) tablet of Elevit:

• Firstly, GBS check with the customer or pictures provided by the customer: if the Alu foil of the blister has already opened or fully sealed.

• Then, GBS checks with the customer: if the complaint tablet directly or occasionally contacted with water or expose to humidity after unpacked from the blister?

Description	Assigned Roles & Document Reference

- If the customer feedback is “yes”

- GBS follow the standard response script provided by Local RQU (Annex 9) to let the customer has better understanding for this product feature (the products that contain virous vitamins, if the tablet is exposed to high humidity environment or directly contact with water for a certain time, then discoloration (spot) will be observed).

• For this situation, blistered tablets that were exposed to humidity or water do not require PTC entry in complaint database. GBS forward relevant photos provided by complainant to CQU after assessment decision of non-PTC is made. CQU collects relevant supporting information to help make sure the case is traceable • All other discoloration feedback will be entered as PTCs.

Note: In case there is any hint/suspicion that the complaint is a potential product quality defect always process the complaint as PTC in complaint database in accordance with GSOP 115.

4.1.14 Others

- Based on external audit requirements, bilingual is needed for field “complaint as reported” item in complaint database system.

- If case from CCC, PV or medical communication departments, GBS needs to reply via email to provide PTC confirmation with complaint database ID or justification for PTC rejection follows on reconciliation purpose.

Here listed medical communication and PV departments’ email address but not limited with the listed email address:

michina@bayer.com

MIChinaCH@Bayer.com

PV_SCP_China@bayer.com or AE_China@bayer.com

- For Radiology Device, potential PTC and PTC+AE sourced from AE Monitoring System website, daily check is needed for entry necessary via following address: *http://maers.adrs.org.cn/console/login.ftl*

1) Log in AE Monitoring system



2) Check cases in AE Monitoring System – China

To check the cases, the item “report submission start date” must be cleared, then click the query button

Description	Assigned Roles & Document Reference



3) Download PTC/PTC+AE/AE cases detail from AE Monitoring System



4) GBS pastes PTC /PTC+AE/AE cases information into word document and fills information in CN-MDGSP-FM-BJ-08-009(Investigation Form for AE Monitoring System Case, Annex 13). Then GBS sends two forms to Bayer service colleagues or Bayer channel colleagues to investigate PTCs/gather additional information. The emails also will be sent to *ptc.china@bayer.com*.

5) GBS perform data entry for all AE Monitoring System cases and send to RQU and update the further information after receiving the feedback email from service colleagues or channel colleagues. Received document with case information needs to be attached into complaint database.

AE Monitoring System case reported as serious injury/death/group medical device adverse events, always processed in first priory, GBS need to complete case initiation within 1 day after receiving.

6) After assessment step closing in complaint database, RQU provide English version RL to GBS. GBS drafts and translates the Evaluation Report into Chinese, then sends email to CQU for review. Once RL finalized, add the final RL and related documents in complaint database before closing or after Amendment.

5 Internal References

- SSC-PTC-SOP-001 “Manage Product Technical Complaint and Suspected Counterfeit Incidents in GBS”

6 External References

- N/A

7 Annex

Annex 1

拜耳医药保健有限公司

关于协查“ ”产品的回复函

局：

关于 要求协查标示为我公司生产的 产品事宜，我公司经过调查, 回复如下：

一. 我公司为 登记在册的合法 企业，同时我公司经认证审查符合 要求。

二. 为 的合法产品。

三. 贵局提供的 协查样品信息如下：

产品名称	产品批号	生产日期 / 有效期至	样品数量

四. 针对上述送检样品， 进行了 检查，检查结果如下：

根据以上检查结果，结论如下：

五. 我公司向贵局提供的相关材料见附件:

附件1: 《营业执照》复印件；

附件2：《药品 许可证》复印件；

附件3：《药品GMP证书》复印件；

特此证明！

拜耳医药保健有限公司

年 月 日

Annex 2

尊敬的 医院：

关于贵院　对

产品质疑的事宜，拜耳公司非常重视，我公司质量部现做出以下说明：

公司为　的合法　企业。

一.　（商品名：　）是　公司在　注册的合法产品。

二. 投诉产品信息：

产品名称：

商品名	产品批号	生产日期	有效期至/保质期

三. 拜耳公司接到该投诉后　。

四. 同时，　公司也对　进行了调查，结果如下:

拜耳公司秉着对消费者负责的态度积极进行调查，来自消费者的反馈有利于我们跟踪及提高产品质量，再次感谢　占用宝贵的时间让我们知晓该问题。

五. 我公司向贵院提供的相关证明材料见如下:

特此证明！

此致

敬礼！

公司名称

年　月　日

尊敬的　医院：

关于贵院　　对

产品质疑的事宜，拜耳公司非常重视，我公司质量部现做出以下说明

一. 投诉产品信息：

产品名称：

商品名	产品批号	生产日期	有效期至/保质期

二．拜耳公司接到该投诉后　　。同时，　　公司也对进行了调查，结果如下:

拜耳公司秉着对消费者负责的态度积极进行调查，来自消费者的反馈有利于我们跟踪及提高产品质量，再次感谢　　占用宝贵的时间让我们知晓该问题。

特此证明！

此致

敬礼！

年　月　日

Annex 3

AE Monitoring System回复函（设备）

事件调查

经查　　的这台　　是在　　年　　月　　日装机，设备序列号为　　，医院于　月　日拨打热线报修，反馈　　，**有/未有**伤害事件发生。　　。

评价结果

导致其设备　　原因是　　。

控制措施

我们已将该问题记录到拜耳全球投诉数据库中，编号为　　。拜耳生产厂监控投诉数据的跟踪和趋势系统，该系统考虑了产品质量投诉的严重性和发生频率。基于数据分析，目前不需要升级进一步行动。**若有升级采取行动的填写该内容** 。拜耳将继续监控此类投诉。

拜耳医药保健有限公司
年　月　日

AE Monitoring System　回复函（耗材）

事件调查

经确认，客户所报告的是我司的产品，**有/没有**发生患者受伤，我司**已获取了/未获取**报告中反馈的样品 ，已将该问题记录到拜耳全球投诉数据库中，编号为　　。针对反馈情况，拜耳公司　　，确认了　　。

评价结果

拜耳公司基于对客户所报告情况　　的调查分析，　　。

控制措施

拜耳生产厂监控投诉数据的跟踪和趋势系统，该系统考虑了产品质量投诉的严重性和发生频率。基于数据分析，目前不需要升级进一步行动。**若有升级采取行动的填写该内容** 。拜耳将继续监控此类投诉。

拜耳医药保健有限公司
年　月　日

Annex 4

拜耳医药保健有限公司

产品质量投诉客户回复

尊敬的 ：

非常感谢您占用宝贵的时间让我们知晓我公司产品出现的问题，我公司于 年 月 日收到贵院科室使用老师反馈的产品情况如下：

产品名称:
规格型号:
生产批号:
注册证号:
反馈问题:

拜耳医药保健有限公司作为该在中国境内的进口总代理公司，已将您所反馈的情况及时与生产厂沟通，现将生产厂回复反馈给您： 。

再次感谢您占用宝贵的时间让我们知晓我公司产品的情况！我司会持续关注就反馈批次产品来自客户的质量反馈，您的反馈有利于我们跟踪及提高产品质量。

此致
敬礼！

拜耳医药保健有限公司

年 月 日

Annex 5

确认书

本人， （身份证号：_____）于_____年月从 。在服用过程中，发现 ，并据此向生产企业拜耳医药保健有限公司（“**拜耳**”）进行投诉。

拜耳收到投诉信息后进行了全面调查，调查显示，　　。

本人认可拜耳的上述调查结论并同意将该产品连同外包装一并交由拜耳进行进一步鉴定和调查（如有必要）。本着对消费者负责的态度，为感谢本人对其产品的支持和信任及在调查过程中的配合，拜耳将向本人无偿提供　　，本人须向拜耳提供拥有执业医师或执业助理医师开具的符合相应要求的处方。

本人同意并确认所述事宜已得到最终妥善解决，并遵守以下规定：

接收

不得被视为是拜耳承认任何可归咎于拜耳的责任，且不再向拜耳和/或拜耳的关联公司及其员工、管理人员或代表或其他任何主体另行提出任何主张或者要求，或发表对拜耳或拜耳产品的负面评论。本人同意对本确认书的存在、内容及本确认书所述事宜予以保密。

如本人或本人亲属、朋友等与本人有关联的第三方违反上述规定，本人双倍退还拜耳提供的产品。若因本人或本人亲属、朋友等与本人有关联的第三方的原因造成拜耳和/或拜耳的关联公司及其员工、管理人员或代表遭受任何权利主张、损失、投诉或诉讼，本人应向其进行赔偿、为其辩护并使其免受损害。

[　此处输入用户姓名　]

签字：

日期：

Annex 6

协议书

甲方：拜耳医药保健有限公司
地址：北京市北京经济技术开发区荣京东街7号
总机：010-59218282

乙方：
电话：

鉴于，

1.　　乙方于_____年___月购买了　　。在服用过程中，乙方　　，并据此向甲方进行投诉。

2. **甲方接到乙方投**诉信息后进行了全面调查。调查显示，　　，**故乙方投**诉的现象非产品生产过程中造成的质量问题，乙方认可甲方的调查结论。

鉴此，虽然确认不属于甲方原因造成的质量问题，但本着对患者关爱的态度，感谢患者对我公司产品的支持和**信任，就甲方向乙方提供人道主**义帮助，达成协议如下：

1. **甲方向乙方无**偿提供。

2. **因甲方提供**给乙方的产品为处方药，乙方保证其拥有执业医师或执业助理医师开具的符合相应要求的处方。

3. **乙方同意并确**认本协议所述事宜已得到最终妥善解决，本协议签订不得被视为是甲方承认任何可归咎**于甲方的**责任。乙方不再向甲方和**/或甲方的关**联公司及其员工、管理人员或代表或其他任何主体另行**提出任何主**张或者要求，且乙方不得并应确保其亲属、朋友不得向任何第三方（包括但不限于任何其**他个人、**组织、政府或医疗机构、媒体等）以任何方式明示或暗示产品存在任何问题、或发表任何有损于甲方名誉和形象的言论或报道。

4. **双方同意**对本协议的存在、本协议的内容及本协议所述事宜予以保密。未经另一方事先书面同意，任**何一方不得向任何第三方予以披露。**

5. **如乙方或其**亲属、朋友等与乙方有关联的第三方违反本协议的任何规定，甲方有权要求乙方双倍退还**甲方向其提供的**产品。若因乙方或其亲属、朋友等于乙方有关联的第三方的原因造成甲方和/或甲方的关联公司及其员工、管理人员或代表
遭受任何权利主张、损失、投诉或诉讼，乙方应向其进行赔偿、为其辩护并使其免受损害。

6. 本协议由双方于　年　月　日正式签署，自签署之日起生效。

Annex 7

Standard Response Template

Response letter – unconfirmed quality defect	Dear NN, Thank you very much for reaching out to Bayer. We confirm that the manufacturing site has finished the complaint investigation of the information, and the result is unconfirmed quality defect. Best Regards
Response letter – unconfirmed quality defect - but plausible	Dear NN, Thank you very much for reaching out to Bayer. We confirm that the manufacturing site has finished the complaint investigation of the information provided, and the result is unconfirmed quality defect - but plausible. We can perform one to one replacement for you and thank you for your feedback. Best Regards
Response letter – confirmed quality defect	Dear NN, Thank you very much for reaching out to Bayer. We confirm that the manufacturing site has finished the complaint investigation of the information provided, and the result is confirmed quality defect. We apologize for this inconvenient, and we will process the replacement for you . Best Regards

回复函-不确认的质量缺陷	您好, NN 非常感谢您联系拜耳。 您所反馈的情况我们已经及时反馈至生产工厂，生产工厂基于反馈信息完成了调查和分析。现将本例投诉的调查结果反馈给您：经过调查，该情况不会发生在我公司生产及储运环节，因此为非确认的质量缺陷。再次感谢您的反馈！
回复函-不确认的质量缺陷，但有可能	您好, NN 非常感谢您联系拜耳。 您所反馈的情况我们已经及时反馈至生产工厂，生产工厂基于反馈信息完成了调查和分析。现将本例投诉的调查结果反馈给您：经过调查，该情况不会发生在我公司生产及储运环节，但也不排除其它环节导致。再次感谢您的反馈，我公司可以为您进行同规格产品替换。
回复函-确认的质量缺陷	您好, NN 非常感谢您占用宝贵的时间让我们知晓我公司产品出现的问题。 您所反馈的情况我们已经及时反馈至生产工厂，生产工厂基于反馈信息完成了调查和分析。现将本例投诉的调查结果反馈给您：经过调查，生产工厂确认了该投诉为偶发情况，为此给您带来的不便敬请原谅！ 就此次产品投诉，我公司会及时与您联络并进行产品的替换，再次感谢您的反馈！

Annex 8

Report Form for PTC or Suspected Falsification and Counterfeit Products
质量技术投诉/疑似假货报告表

<table>
<tr><td colspan="2">Product Name产品名称</td><td></td><td>Lot No. 产品批号</td><td colspan="3"></td></tr>
<tr><td colspan="2" rowspan="2">PTC Reported Date
质量投诉报告日期</td><td rowspan="2"></td><td>Production Date 生产日期</td><td colspan="3"></td></tr>
<tr><td>Expiry Date 有效期至</td><td colspan="3"></td></tr>
<tr><td rowspan="3">Complainant
投诉者</td><td>Type
类型</td><td colspan="5">☐ hospital医院 ☐ pharmacist药店 ☐ wholesaler经销商 ☐ authorities 官方
☐ physician医生 ☐ patient患者 ☐ Bayer employee 拜耳员工
☐ other healthcare professionals 其他医护人员
☐ other其他</td></tr>
<tr><td>Complainant Name
投诉者姓名</td><td></td><td>City
所在城市</td><td></td><td>Telephone联系电话</td><td></td></tr>
<tr><td>Institution
所在机构</td><td colspan="2"></td><td>Email
邮箱</td><td colspan="2"></td></tr>
<tr><td>Purchase from
购买渠道</td><td colspan="2">☐hospital医院（ _____ ）
☐pharmacist药店（ _____ ）
☐E-Commerce电商（ _____ ）</td><td>Purchase Date
购买日期</td><td colspan="3"></td></tr>
<tr><td colspan="2">Complaint as reported
投诉描述</td><td colspan="5">Reason as reported and description of complaint including reported error and alleged defect
报告的原因和投诉的描述，包括声称的缺陷和错误：

Other relevant documents and reports (complaint letter, etc.)
其他相关的文件和报告（投诉信件等）</td></tr>
<tr><td colspan="2" rowspan="2">Sample & Photo available？
投诉样品和照片是否可获得？</td><td>Sample
样品</td><td colspan="4">☐Yes是
☐No否 Justification原因:</td></tr>
<tr><td>Photo
照片</td><td colspan="4">☐Yes是
☐No否</td></tr>
<tr><td colspan="2">Customer response required
是否需要调查结果回复</td><td colspan="5">☐Yes是 ☐NO 否</td></tr>
<tr><td colspan="2">Additional Comments
其他信息</td><td colspan="5"></td></tr>
<tr><td colspan="7">Signer/date填报人签名/日期：</td></tr>
</table>

Annex 9

Elevit discoloration response script

1 Elevit tablets are imported and packaged at Qidong Site. Each batch was tested as specification and will be released into the market after successful testing. Each batch is produced following valid procedure and process control. All materials used in packaging are controlled and released according to valid specification and methods before usage.
2 Elevit tablets are rich in vitamins, minerals and other trace elements. Tablets will be discolored if contact with moisture from external environment. It has been clearly indicated in the leaflet that this product must not be used if the color of the tablet coat has changed. Elevit is composed of multiple vitamins and minerals. The aspect of the tablet may change when exposed to air and/or moisture during opening, or if the package is not complete. Please do not take the product if tablet discolored.
3 The storage conditions of the product are: below 25℃, avoid moisture. The information is clearly indicated in leaflet. The Bayer company ensure the production comply with storage condition during packaging, storage and transportation to distributor.
4 The company has sufficient product stability data to support the determination of product expiration date. In the case of complete packaging and satisfied storage conditions, it is certain that no discoloration will occur within the shelf life of the product.
5 Due to the particularity of this type of products, the company has also conducted a large number of investigations and studies on the product discoloration. Sufficient data show that discoloration might occur, if the product gets into contact with humidity or water, black spots can appear on contact with air humidity.
If the product comes into contact with water, the entire surface of the tablet might change the color.
6 The transportation, storage, and correct usage of products are essential to ensure quality of products. As the members of a responsible company, we always prioritize the interests of our consumers; strictly follow the laws and regulations of the country and commit to provide first-class products and services to the public.

1爱乐维复合维生素片为进口分包装产品, 所有批次均检验合格后才放行于市场，确保产品高质量.
2该产品中富含大量维生素、矿物质及微量元素，该类产品如与外界水分接触会出现受潮、变色的现象。我们于说明书注意事项中已有明确提示：本品性状发生改变时禁止使用。该产品是由几种维生素和矿物质组成，并且其外观可能在开封接触到空气和/或水分时发生变化，如果包装不完整，也可能出现该情况。如果包衣颜色发生变化，建议不服用该产品。
3
产品的贮藏条件为：25℃以下，避免潮湿。该信息于说明书中已明确。公司可确保产品生产、包装、储存并运输至经销商处符合此储存条件。
4公司具备充分的产品稳定性数据，以支持产品效期。在包装密封完整的情形下，符合储存条件，可确定产品效期内无变色现象发生。
5由于该维生素类产品的特殊性，公司也针对产品变色进行了大量的调查研究，充分数据表明：当产品出现变色（如：片面发黑或片面出现黑点）此类现象仅出现于药片与潮湿空气或水分接触。
6
产品的运输、储存、和正确使用，对确保产品质量尤为重要。作为一家负责任的企业，我司始终把消费者利益放在首位，并严格遵守国家的各项法律法规，承诺为广大民众提供优质的产品和服务。

Below template belong to China QMS system, which need to be shown for authority inspection. Version was controlled by China Country Quality to avoid confusion for inspection.

Annex 10



CN-MDGSP-FM-BJ-05-014-1.0 物料

Annex 11



QPF-13-25 Goods Statement of Profit a

Annex 12



CN-CQ-FS-4.9-12-3.0 Sample Apr

Annex 13



CN-MDGSP-FM-BJ-08-009-1.0 来自

Annex 14



CN-MDGSP-FM-BJ-08-004-1.0 补货

History of changes

Version	Significant changes with respect to previous version	Effective date
1.0	New	2020-06-28
2.0	Minor changes in the following chapters 4.1.5, 4.1.11, 4.1.13 Add specific requirement for some products in 4.1.4 Add email reply in 4.1.6 Add special cases in 4.1.12 Annex 1-9 added	2020-08-31
3.0	Annex 10-15 added Add verbal reply and flow chart in 4.1.6 Add reimbursement claim beyond the principle of compensation and flow chart in 4.1.11 Add Elevit discoloration non-PTC handling and flow chart in 4.1.12	2020-11-02
4.0	#Country specific SOP template version up to 4.0, SSC-PTC-BP-002. V4.0, merged all information to current document from SSC-SOP-CN-001, version 3.0. Changed Document Label to SSC-PTC-SOP-CN-001 Changed SSCDN to GBS in all session, changed SCD to GBS DLC # Included row change for author and approvers # Updated Abbreviations in session 2.0 # Minor updates for escalation rules in session 4.1.3 # Minor changes for 4.1.5 Product samples. # Updated all SAP screenshot in session 4.1.11 Reimbursement and Replacement # Minor changes for 4.1.14 Others, 6). # Removed complaint database User Letter 49 from Annex 1, and session 4.1.13 Exceptions and special cases, re-lined the annex number # Add the contact list for medical communication department who need GBS provide complaint database ID or justification for PTC rejection.	2023-03-30
5.0	# Author changed. # Updated Annex 13&14 # Updated session 4.1.14 Others, minor changes for ADR cases, add a process chart # Add an Internal reference document in session 5, 202126- “Complaint handling and adverse event procedure” # Updated session4.1.6 Statement letter, add risk category III.	2024-01-22
6.0	# Updated session 3.3 Roles and responsibilities. # Updated session 4.1.1 General Information, add Suspected Falsification and Counterfeit Incident. # Updated session 4.1.2 Contact list, add on the QINT SharePoint: Country Quality List. # Updated session4.1.3 4.1.3 Escalation Rules, deleted initial risk category I or II, add all cases with potential risk classification High or Medium. # Updated session 4.1.4 Pharmacovigilance cases, deleted Dev@com. # Minor changes for 4.1.5 Product samples.	See Cover Page

	# Minor changes for 4.1.10 Gathering additional information. # # Minor changes for 4. 1.11 Reimbursement and Replacement, Change the name of Annex 10, 12, and 14. # Minor changes for 4.1.5 Product samples. # Updated session 4.1.14 Others, minor changes for ADR cases, deleted a process chart. Add the timeline complete case initiation within 1 day after receiving. # Minor changes for 4.1.5 Product samples. # Deleted an Internal reference document in session 5, 202126- “Complaint handling and adverse event procedure”	

Task: Content Approval Verdict: Approve changes & release Approval to be made Effective	Shue Zhang, (shue.zhang@bayer.com) Approver - Content 09-May-2025 00:22:28 GMT+0000

Task: Final Approval Verdict: Approve changes & release Final Approval to be made Effective	Jinghua Yin, (jinghua.yin@bayer.com) Approver 09-May-2025 02:11:43 GMT+0000